

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS**

----- X
SUNIL JASON,

Plaintiff,

-against-

THE CITY OF NEW YORK, Detective DENNIS MOGELNICKI (Shield No. 4467), Detective KEITH STYLIANSOS (Shield No. 23970), Officer JOHN DOE 1, Officer JOHN DOE 2, Officer JOHN DOE 3 (Shield No. 4394), Officer JOHN DOES 4-5, in their individual capacities,

Defendants.
----- X

Index No.:

Date Purchased:

SUMMONS

Plaintiff designates Queens County as place of trial.

The basis of venue is the location of the unlawful acts

To the above named Defendants:

You are hereby summoned to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's attorney within **20** days after the service of this summons, exclusive of the day of service (or within **30** days after the service of this summons if not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the Complaint.

Dated: New York, New York
April 10, 2018

BELDOCK LEVINE & HOFFMAN LLP



By: _____
Gillian Cassell-Stiga
99 Park Avenue, PH/26th Fl.
New York, New York 10016
(212) 490-0400
Attorneys for Plaintiff

To:

City of New York Corporation Counsel of the City of New York 100 Church Street New York, NY 10007
Detective DENNIS MOGELNICKI (Shield No. 4467) 1 Police Plaza New York, NY 10038
Detective KEITH STYLIANSOS (Shield No. 23970) 1 Police Plaza New York, NY 10038

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SUNIL JASON,

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MOGELNICKI (Shield No. 4467), Detective KEITH
STYLIANSOS (Shield No. 23970), Officer JOHN DOE
1, Officer JOHN DOE 2, Officer JOHN DOE 3 (Shield
No. 4394), Officer JOHN DOES 4-5, in their individual
capacities,Defendants.
----- X**VERIFIED COMPLAINT****JURY TRIAL DEMANDED**

Plaintiff SUNIL JASON, by his attorney Gillian Cassell-Stiga of Beldock Levine & Hoffman LLP, as and for his Verified Complaint, does hereby state and allege as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action brought to vindicate plaintiff's rights under the Fourth and Fourteenth Amendments of the Constitution of the United States, through the Civil Rights Act of 1871, *as amended*, codified as 42 U.S.C. § 1983, along with pendent claims under the laws of the State of New York.
2. Plaintiff Sunil Jason's rights were violated when officers of the New York City Police Department ("NYPD") twice unconstitutionally and without any legal basis seized, assaulted, and arrested plaintiff despite the absence of probable cause. By reason of defendants' actions, including the unreasonable and unlawful seizure of his person, plaintiff was deprived of his constitutional rights.
3. Plaintiff also seeks an award of compensatory and punitive damages and attorneys' fees.

PARTIES AND JURISDICTION

4. Plaintiff SUNIL JASON is and was at all times relevant to this action, a resident of Queens County in the State of New York.
5. Defendant The City of New York (“City”) is and was at all times relevant herein a municipal entity created and authorized under the laws of the State of New York. It has all the powers vested in it by the laws of the State of New York, the City of New York and the Charter of the City of New York. It is authorized by law to maintain a police department which acts as its agent in the area of law enforcement and for which it is ultimately responsible. Defendant City assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the NYPD. At all relevant times herein, it was the employer of the individually-named defendants.
6. At all times hereinafter mentioned, Defendant New York City Police Department Detective (“Det.”) Dennis Mogelnicki (Shield No. 4467), Det. Keith Stylianos (Shield No. 23970), Officer JOHN DOE 1, Officer JOHN DOE 2, Officer JOHN DOE 3 (Shield No. 4394), Officer JOHN DOES 4-5 (hereinafter collectively the “individual defendants”) were acting as agents of the City of New York within the course and scope of their duties and functions of employment by and with the New York City Police Department (“NYPD”) and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties.
7. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees, and officers of the NYPD, and otherwise performed and engaged in conduct incidental to the performance

of their lawful functions in the course of their duties. They were acting for and on behalf of the NYPD at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the NYPD and incidental to the lawful pursuit of their duties as officers, employees and agents of the NYPD.

8. The individual defendants are being sued in their individual capacities.
9. The individual defendants' acts hereafter complained of were carried out intentionally, recklessly, with malice, and in gross disregard of plaintiff's rights.
10. At all relevant times, the individual defendants were engaged in a joint venture, assisting each other in performing the various actions described herein and lending their physical presence and support and the authority of their offices to one another.
11. The true name and shield number of defendants John Does are not currently known to the plaintiff.¹ However, they were employees or agents of the City of New York on the date of the incident. Accordingly, they are entitled to representation in this action by the New York City Law Department ("Law Department") upon their request, pursuant to New York State General Municipal Law § 50-k. The Law Department, then, is hereby put on notice (a) that plaintiff intends to name said individuals as defendants in an amended pleading once the true names and shield numbers of said defendants become known and (b) that the Law Department should immediately begin preparing their defense in this action.

JURISDICTION AND VENUE

12. Venue is properly laid in the Supreme Court of the State of New York, County of Queens because the torts originated in the County of Queens.
13. An award of costs and attorneys' fees is authorized pursuant to 42 U.S.C. § 1988.

¹ By identifying said defendants as "John Doe" or "Richard Roe," plaintiff is making no representations as to the gender of said defendants.

14. As authorized by New York General Municipal Law § 50-e, plaintiff filed a timely Notice of Claim with the New York City Comptroller on or about March 27, 2017.
15. Mr. Jason's claims have not been adjusted by the New York City Comptroller's Office.

STATEMENT OF FACTS

January 14, 2017 Incident

16. On January 14, 2017, at approximately 2:00 p.m., Sunil Jason left his apartment to speak with a friend who had just arrived outside his building at 7-12 College Point Blvd, Flushing NY 11356 in Queens County in the State of New York.
17. As Mr. Jason chatted with his friend on the sidewalk outside Mr. Jason's home, an unmarked van pulled up to the curb.
18. Officer JOHN DOE 1, Officer JOHN DOE 2, and Officer JOHN DOE 3 exited the van.
19. Officer JOHN DOES 1-3 grabbed Mr. Jason's friend without cause or warning.
20. Officer JOHN DOES 1-3 told Mr. Jason to stop walking. Mr. Jason complied.
21. Mr. Jason produced his identification to Officer JOHN DOE 1 -3, who confirmed that Mr. Jason resided at that location and then returned the identification to Mr. Jason.
22. Officer JOHN DOE 1 (a taller black male) and Officer JOHN DOE 2 (a shorter black male) violently grabbed Mr. Jason without cause or warning.
23. Officer JOHN DOE 3 (a white male) announced that he believed Mr. Jason had active warrants and again took Mr. Jason's identification out of his pocket.
24. Officer JOHN DOE 1 and Officer JOHN DOE 2 searched plaintiff without cause or legal justification.
25. Mr. Jason's family exited his home to observe the unlawful conduct and recorded a portion of the incident on video.

26. Officer JOHN DOE 3 returned, having confirmed Mr. Jason had no active warrants, and returned Mr. Jason's identification to him.
27. Officer JOHN DOES 1-3 confirmed that they had no legal basis to seize Mr. Jason.
28. Mr. Jason was eventually released less than an hour after the initial stop.

March 3, 2017 Incident

29. On March 3, 2017, at approximately 9:00 a.m., Sunil Jason was driving to his home after having picked up coffee. Mr. Jason parked near the corner of his block and entered his home.
30. Realizing he had forgotten something in his car, Mr. Jason returned to the car to retrieve the forgotten item.
31. Upon walking back to his home a second time, Mr. Jason was approached by Det. Dennis Mogelnicki (Shield No. 4467) and Det. Keith Stylianos (Shield No. 23970).
32. As Mr. Jason walked to the rear of his home, Det. Mogelnicki and Det. Stylianos grabbed Mr. Jason from behind and pulled him onto the sidewalk.
33. Mr. Jason screamed to his family for assistance.
34. Det. Mogelnicki and Det. Stylianos placed Mr. Jason in excessively tight handcuffs, twisting Mr. Jason's arm and causing injury to his shoulder.
35. Mr. Jason's family members exited his home.
36. Det. Mogelnicki and Det. Stylianos claimed that Mr. Jason had illegally broken into a car that Mr. Jason and his family members confirmed was in fact his own vehicle.
37. Nonetheless Det. Mogelnicki and Det. Stylianos demanded that Mr. Jason provide them with the key to his car and open the car door.

38. Using a key she retrieved from Mr. Jason's pocket, Mr. Jason's mother opened the car door as the officers demanded.
39. Although Mr. Jason's ownership of the vehicle was confirmed, the officers nonetheless unlawfully searched Mr. Jason.
40. Confirmed that they never had any legal basis to seize Mr. Jason, Det. Mogelnicki and Det. Stylianos released Mr. Jason.
41. An ambulance was called and took Mr. Jason to Flushing hospital.
42. Mr. Jason continued to experience pain in his shoulder and serious wrist injury due to the unlawful force used against him.
43. As a result of the false arrests and unlawful use of force against him, Mr. Jason experienced pain, suffering, mental anguish, and humiliation.

**FIRST CLAIM
DEPRIVATION OF RIGHTS
UNDER THE UNITED STATES CONSTITUTION THROUGH 42 U.S.C. § 1983
*(Against the individual defendants)***

44. Plaintiff incorporates by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.
45. Defendants, under color of state law, subjected the plaintiff to the foregoing acts and omissions, thereby depriving plaintiff of his rights, privileges and immunities secured by the Fourth and Fourteenth Amendments to the United States Constitution, including, without limitation, deprivation of the following constitutional rights: (a) the freedom from unreasonable seizure of his person; (b) the freedom from arrest without probable cause; (c) the freedom from false imprisonment; (d) the freedom from the use of excessive force; and (e) the failure to intervene to prevent the complained of conduct.

46. As a result of the foregoing, plaintiff was deprived of liberty, suffered emotional distress, injury, humiliation, loss of property, costs and expenses, and was otherwise damaged and injured.

SECOND CLAIM
LIABILITY OF THE CITY OF NEW YORK FOR CONSTITUTIONAL
VIOLATIONS – 42 U.S.C. § 1983
(Against defendant the City of New York)

47. Plaintiff incorporates by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.
48. At all times material to this complaint, defendant the City of New York had de facto policies, practices, customs and usages which were a direct and proximate cause of the unconstitutional conduct alleged herein.
49. At all times material to this complaint, defendant the City of New York failed to properly train, screen, supervise, or discipline its employees and police officers, including individual defendants, and failed to inform the individual defendant's supervisors of their need to train, screen, supervise or discipline the individual defendants.
50. The policies, practices, customs, and usages, and the failure to properly train, screen, supervise, or discipline, were a direct and proximate cause of the unconstitutional conduct alleged herein, causing injury and damage in violation of plaintiff's constitutional rights as guaranteed under 42 U.S.C. § 1983 and the United States Constitution, including its Fourth and Fourteenth Amendments.
51. As a result of the foregoing, plaintiff was deprived of liberty, suffered emotional distress, injury, humiliation, costs and expenses, and was otherwise damaged and injured.

**THIRD CLAIM FOR RELIEF
FALSE ARREST AND FALSE IMPRISONMENT
UNDER THE LAWS OF THE STATE OF NEW YORK
(Against all defendants)**

52. Plaintiff incorporates by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.
53. By the actions described above, the individual defendants caused to be falsely arrested or falsely arrested plaintiff, without reasonable or probable cause, illegally and without a warrant, and without any right or authority to do so.
54. The acts and conduct of the individual defendants were the direct and proximate cause of injury and damage to plaintiff and violated his statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.
55. The conduct of the individual defendants alleged herein occurred while they were on duty and in uniform, and/or in and during the course and scope of their duties and functions as NYPD officers, and/or while they were acting as agents and employees of defendant City, clothed with and/or invoking state power and/or authority, and, as a result, defendant City is liable to plaintiffs pursuant to the state common law doctrine of respondeat superior.
56. As a result of the foregoing, plaintiff was deprived of his liberty, suffered specific and serious bodily injury, pain and suffering, psychological and emotional injury, costs and expenses, and was otherwise damaged and injured.

**FOURTH CLAIM FOR RELIEF
ASSAULT AND BATTERY
UNDER THE LAWS OF THE STATE OF NEW YORK
(Against all defendants)**

57. Plaintiff incorporates by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

58. By the actions described above (namely, forwarding false information to other police officers, resulting in the custodial arrest of plaintiff), the individual defendants did inflict assault and battery upon plaintiff. The acts and conduct of individual defendants were the direct and proximate cause of injury and damage to plaintiff and violated his statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.
59. The conduct of the individual defendants alleged herein occurred while they were on duty, and/or in and during the course and scope of their duties and functions as NYPD officers, and/or while they were acting as agents and employees of defendant City, clothed with and/or invoking state power and/or authority, and, as a result, defendant City is liable to Plaintiff pursuant to the state common law doctrine of respondeat superior.
60. As a result of the foregoing, Plaintiff suffered physical injury, including injury to his shoulder and wrist, emotional distress, humiliation, and was otherwise damaged and injured.

FIFTH CLAIM FOR RELIEF
NEGLIGENCE
UNDER THE LAWS OF THE STATE OF NEW YORK
(Against all defendants)

61. Plaintiff incorporates by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.
62. Defendants owed a duty of care to Plaintiff to prevent the physical, mental, and economic damages sustained by Plaintiff. Under the same or similar circumstances, a reasonable, prudent, and careful person would have anticipated that an injury to Plaintiff or to those in a like situation would probably result from this conduct.
63. Defendants jointly and severally, negligently caused injury, pain and suffering, emotional distress, and damage to Plaintiff. The acts and conduct of defendants were the direct and

proximate cause of injury and damage to Plaintiff and violated his statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

64. Defendant City negligently hired, screened, retained, supervised, and trained the individuals defendants.

65. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to Plaintiff and violated his statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

**SIXTH CLAIM FOR RELIEF
RESPONDEAT SUPERIOR LIABILITY
UNDER THE LAWS OF THE STATE OF NEW YORK
(Against the City of New York)**

66. Plaintiff incorporates by reference the allegations set forth in the preceding paragraphs as if fully set forth herein.

67. The conduct of the individual defendants as alleged herein, occurred while they were on duty and in uniform, and/or in and during the course and scope of their duties and functions as police officers and/or while they were acting as agents and employees of the City of New York and, as a result, the City of New York, is liable to the plaintiff pursuant to state common law doctrine of respondeat superior.

68. As a result of the foregoing, Plaintiff was deprived of his liberty and property, suffered emotional distress, humiliation, and was otherwise damaged and injured.

**SEVENTH CLAIM FOR RELIEF
NEGLIGENT INFLICTION OF EMOTIONAL DISTRESS
UNDER THE LAWS OF THE STATE OF NEW YORK
(Against all defendants)**

69. Plaintiff incorporates by reference the allegation set forth in all preceding paragraphs as if fully set forth herein.

70. By the actions described above, defendants engaged in extreme and outrageous conduct, which negligently caused severe emotion distress to Plaintiff. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to the Plaintiff and violated his statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.
71. As a result of the foregoing, Plaintiff was deprived of his liberty and property, suffered emotional distress, humiliation, and was otherwise damaged and injured.

EIGHTH CLAIM FOR RELIEF
INTENTIONAL INFLICTION OF EMOTIONAL DISTRESS
UNDER THE LAWS OF THE STATE OF NEW YORK
(Against all defendants)

72. Plaintiff incorporates by reference the allegation set forth in all preceding paragraphs as if fully set forth herein.
73. By the actions described above, defendants engaged in extreme and outrageous conduct, which intentionally caused severe emotion distress to Plaintiff. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to the Plaintiff and violated his statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.
74. As a result of the foregoing, Plaintiff was deprived of his liberty and property, suffered emotional distress, humiliation, and was otherwise damaged and injured.

NINETH CLAIM FOR RELIEF
BIAS-BASED PROFILING
UNDER THE LAWS OF THE CITY OF NEW YORK
(Against all defendants)

75. Plaintiff incorporates by reference the allegation set forth in all preceding paragraphs as if fully set forth herein.

76. In seizing, assaulting and searching plaintiff based on his race rather than plaintiff's conduct or other information linking him to suspected unlawful activity, the defendant officers engaged in bias-based profiling in violation of Section 14-151(c)(i) and (ii) of the Administrative Code of the City of New York.
77. The conduct of the individual defendants alleged herein occurred while they were on duty and in uniform, and/or in and during the course and scope of their duties and functions as NYPD officers, and/or while they were acting as agents and employees of defendant City, clothed with and/or invoking state power and/or authority, and, as a result, defendant City is liable to plaintiffs pursuant to the state common law doctrine of respondeat superior.
78. Accordingly, plaintiff is entitled to injunctive and declaratory relief, along with reasonable attorney's fees and costs.

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JURY DEMAND

79. Plaintiff demands a trial by jury in this action on each and every one of his damage claims.

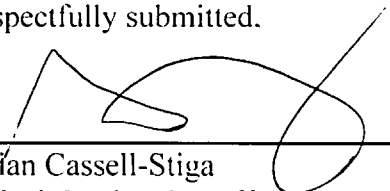
WHEREFORE, plaintiff demands judgment against the defendants individually and jointly and prays for relief as follows:

- a. That he be compensated for violation of his constitutional rights, pain, suffering, mental anguish and humiliation; and
- b. That he be awarded punitive damages against the individual defendants; and
- c. That he be compensated for attorneys' fees and the costs and disbursements of this action; and
- d. For such other further and different relief as to the Court may seem just and proper.

Dated: New York, New York
April 10, 2018

Respectfully submitted.

By:

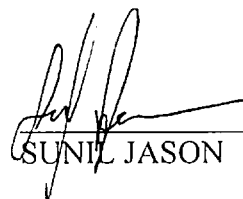


Gillian Cassell-Stiga
Beldock Levine & Hoffman, LLP
Attorneys for the Plaintiff
99 Park Avenue
New York, New York 10016
t: 212-277-5824

STATE OF NEW YORK)
 : ss.:
COUNTY OF NEW YORK)

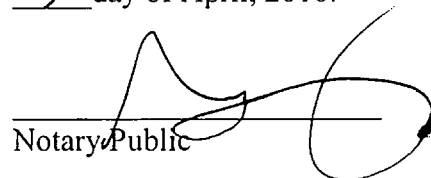
I, SUNIL JASON, being duly sworn, state:

I am the Plaintiff/Petitioner in the within action. I have read the foregoing Verified Complaint and Petition and know the contents thereof; the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and as to those matters I believe it to be true.



SUNIL JASON

Sworn to before me this
3 day of April, 2018.



Notary Public

GILLIAN ROBIN CASSELL-STIGA
Notary Public, State of New York
No. 02CA6282570
Qualified in Kings County
Commission Expires May 28, 2021